

2. 9:00 AM CASE NUMBER: L24-03844

CASE NAME: CONNECT BY AMERICAN FAMILY VS. FATIMA CARLOS

*HEARING ON MOTION FOR DISCOVERY TO DEEM REQUEST FOR ADMISSIONS ADMITTED AND FOR SANCTIONS IN THE AMOUNT OF \$585.00

FILED BY: CONNECT BY AMERICAN FAMILY

TENTATIVE RULING:

Plaintiff moves to deem admitted Requests for Admission, which were served on defendant and to which no response was made.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. (Code Civ. Proc. § 2033.280(b).)

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory, unless the party subject to the sanction acted with substantial justification or other circumstances would make a sanction unjust. (Code of Civ. Proc. Section 2033.290(c).)

The Court's ability to grant the motion, however, is affected by a drafting error in Request Number 2. It states: "Admit that on or about 8/17/22, you [ENTER LOSS DESCRIPTION]." Number 3 states "Admit that due to the above negligence, Plaintiff issued payment under the Insured's policy in the Amount of \$15771.15." The error in Number 2 renders it unintelligible, and Number 3 relies on the "above" admission, and thus also is unintelligible.

The motion to seem admitted is granted as to Requests for Admission Numbers 1 and 4 and is denied as to Numbers 2 and 3.

Plaintiff's request for sanctions in the amount of \$585 is granted in part: it is reduced to \$292.50.

3. 9:00 AM CASE NUMBER: L24-06739
CASE NAME: JOHN LANGERSTON VS. JOHN KANG
***HEARING ON MOTION IN RE: PLAINTIFF'S MOTION TO TAX COSTS**
FILED BY: LANGERSTON, JOHN
TENTATIVE RULING:

Plaintiff moves to tax costs. (This is separate from the pending motion to award attorney's fees as a sanction under Code of Civil Procedure section 128.5.) The appropriateness and necessity of costs is best decided by the judge who presided over the case and trial. Accordingly, the Court continues this motion until January 12, 2027, 9:00 a.m., when Judge Athanasiou will be available. Plaintiff is to give notice.

4. 9:00 AM CASE NUMBER: L25-02597
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. JOSEPH RELVA
***HEARING ON MOTION IN RE: MSJ**
FILED BY:
TENTATIVE RULING:

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant, who is self-represented.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 13.2 et seq. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation*, *supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the